

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard
on Wednesdays at 9:00 a.m.

Date: July 1, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Clarke vs. Niguel Shores Community Association	TENTATIVE RULING: <u>Motion 1. Demurrer to FAC</u> Defendant Roslyn M. Zankich demurs to the FAC of Plaintiff <i>in pro per</i> Deborah Clarke. For the following reasons, the demurrer is OVERRULED. <u>Standard on Demurrer</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of

judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 n.7.)

Although courts should take a liberal view of inartfully drawn complaints (*see* Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; *see* Code Civ. Proc., § 425.10(a).)

First Cause of Action (Breach of Contract)

Defendant argues Plaintiff does not address the court’s previous order sustaining demurrer and that the FAC alleges no privity of contract between the parties, no specific facts of breach, and no causation or damages tied to Defendant Zankich’s conduct.

The elements of a cause of action for breach of contract are: (i) existence of the contract; (ii) Plaintiff’s performance or excuse for nonperformance; (iii) Defendant’s breach; and (iv) damage to plaintiff resulting therefrom. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811.)

The court sustained Defendant Zankich’s demurrer to the original complaint on the ground “the Complaint does not allege Plaintiffs performed their obligations under the CC&Rs or have been excused f[rom] nonperformance.” (ROA # 58 [11/26/2025 Minute Order].) The FAC corrects that defect, alleging Plaintiff Clarke has performed her obligations under the CC&Rs, having “faithfully paid quarterly assessments, special assessments, and contributed positively to the community.” (FAC at 16:26-17:8.)

The FAC also alleges facts to support the remaining elements, including: (i) existence of a valid contract binding the parties, the CC&Rs (FAC 3:1-14); breaches by Defendant Zankich, including raising the roof height and modifying the roof line (FAC 25:9-26:6), placing tresses above the existing roof (*see* FAC 9:8-10:13, 18:17-20:11), constructing a new structure running adjacent to the length of the easement area (FAC 22:13-17), and altering the direction and flow of drainage such that all water from Defendant Zankich’s property drains upon Plaintiff’s home (FAC at 24:8-25:8); and damage therefrom (*see, e.g.,* FAC at 24:11-26:6 [alleging drainage problems and obstruction of view], 28:3-24).